

**UNITED STATES OF AMERICA
BEFORE THE
FEDERAL ENERGY REGULATORY COMMISSION**

Interconnection of Large Loads to the Interstate Transmission System	))))	Docket No. RM26-4-000
---	------------------	------------------------------

**INITIAL COMMENTS OF
THE WEC COMPANIES**

Pursuant to the Notice Inviting Comments issued by the Federal Energy Regulatory Commission (“Commission”) in the captioned proceeding,¹ Wisconsin Electric Power Company (“Wisconsin Electric”) and Wisconsin Public Service Corporation (“WPS”; together with Wisconsin Electric, “WEC Companies”)² respectfully submit these initial comments in response to the Secretary of Energy’s (“Secretary”) October 23, 2025 directive that the Commission initiate rulemaking procedures to consider a proposed advance notice of proposed rulemaking (“ANOPR”) presenting potential policy reforms to accelerate the timely and orderly interconnection of large loads to the transmission system.³ The WEC Companies appreciate the opportunity to participate in this proceeding and reserve the right to submit additional comments on any proposed rules issued by the Commission in response to the ANOPR.

¹ *Interconnection of Large Loads to the Interstate Transmission Sys.*, Notice Inviting Comments, Docket No. RM26-4-000 (Oct. 27, 2025); *see also Interconnection of Large Loads to the Interstate Transmission Sys.*, Notice Granting Extension of Time, Docket No. RM26-4-000 (Nov. 7, 2025) (granting extension of time for comments on the ANOPR until November 21, 2025).

² Wisconsin Electric and WPS are wholly owned subsidiaries of WEC Energy Group, Inc. Both Wisconsin Electric and WPS are load serving entities and public utilities providing electricity and natural gas service to customers throughout Wisconsin.

³ Secretary of Energy’s Letter re: the Interconnection of Large Loads Pursuant to the Secretary’s Authority Under Section 403 of the Department of Energy Organization Act and Advance Notice of Proposed Rulemaking, Docket No. RM26-4-000 (Oct. 27, 2025) (ANOPR).

I. Executive Summary

The WEC Companies value the Secretary’s initiative to address large load and agree with the ANOPR’s objective of serving large loads expediently and efficiently. At a time when Wisconsin is experiencing tremendous growth in its electrical demand arising from data center investments in the State, the WEC Companies have practical and legal concerns with the ANOPR. The WEC Companies encourage the Commission to strongly consider: (1) potential negative implications of a new, federally mandated interconnection process that could disrupt and introduce delay into the existing, successful state and regional processes for addressing large load interconnections; and (2) the importance of recognizing and respecting state jurisdiction over load interconnections under the Federal Power Act (“FPA”).⁴

Informed by the demonstrable success of interconnecting large load retail customers in Wisconsin, the WEC Companies believe that a federally mandated load interconnection process is not necessary to bring data centers online in a timely manner and could, in fact, introduce significant delay and impede the efforts of the WEC Companies and the Public Service Commission of Wisconsin (“PSCW”) to interconnect hyperscale data centers while protecting the WEC Companies’ existing retail customers. The WEC Companies have been successful bringing online new large loads in an expeditious and fair manner, consistent with its retail customer needs. The new processes the WEC Companies are establishing, subject to review and oversight by the PSCW and in addition to the Midcontinent Independent System Operator, Inc.’s (“MISO”) approach to large load interconnection, will continue to successfully address the challenges associated with accelerating how large loads are interconnected to the grid, while respecting and maintaining state and federal jurisdiction. The WEC Companies are concerned that a “one size

⁴ 16 U.S.C. § 824(a) (2018).

fits all” federalized large load interconnection process could supersede the progress that has been made in Wisconsin and elsewhere and unintentionally delay the otherwise timely and efficient interconnection of data center loads in Wisconsin. Moreover, installing a new federal process could increase the risk of shifting costs that should be borne by large load retail customers onto the WEC Companies’ other retail customers. The WEC Companies therefore submit that any rulemaking pursuant to the ANOPR should be limited and apply only to regions that do not have similarly strong processes in place.

The WEC Companies also appreciate the ANOPR’s expressed intent to preserve state jurisdiction notwithstanding its assertion of jurisdiction over the interconnection of large load retail customers to the transmission system.⁵ The WEC Companies, like many other utilities with an obligation to serve their retail customers, are concerned that certain elements of the ANOPR would ultimately usurp states’ exclusive authority over retail sales—for example, by establishing a process that grants third parties a right to make retail sales to co-located load regardless of a particular state’s retail franchise laws. If the Commission proceeds with a rulemaking, it must ensure that any rule does not circumvent state retail sale authority by guaranteeing that loads have “open and non-discriminatory access to capacity, energy, and ancillary services” only to the extent consistent with applicable state law.⁶

II. The ANOPR Approach Could Impede Already Well-Functioning Processes and Harm Wisconsin’s Efforts to Interconnect Large Load Retail Customers on an Accelerated Basis

A chief policy objective underpinning the Secretary’s ANOPR—which the WEC Companies support—is the desire to interconnect large loads efficiently, fairly, and expeditiously

⁵ ANOPR at P 15.

⁶ *See id.* P 16 n.36.

in order to advance our national security goals. To mandate that Transmission Providers revise their tariffs to create a large load interconnection process, the Commission likely will need to find that the existing tariffs unduly discriminate or are otherwise unjust and unreasonable pursuant to section 206 of the FPA. However, the general statements in the ANOPR that demand is growing and large loads need to be expeditiously interconnected to the grid do not meet that burden. And, such a finding would conflict with the demonstrable success of the current regulatory process in Wisconsin and the MISO region. Consequently, there is a significant risk that introducing a new, federal regulatory process at this stage would have the unintended effect of stalling the positive momentum that the WEC Companies and other stakeholders are building toward a streamlined process for interconnecting large loads in Wisconsin.

Wisconsin is a “hot spot” for attracting data centers today and has been a success story in terms of interconnecting large loads to the grid. There currently are forty-seven data centers in Wisconsin that are either operational or planned to commence operations in the near future,⁷ including two major investments:

- Microsoft is committed to invest over \$7 billion to construct the world’s most powerful and advanced data center in Wisconsin Electric’s service territory in Mount Pleasant, Wisconsin, which is expected to begin operating next year.⁸
- Vantage Data Centers is also investing in a \$15 billion data center in Port Washington, Wisconsin that will be powered by Wisconsin Electric and is

⁷ Wis. Data Ctrs., DATA CTR. MAP, <https://www.datacentermap.com/usa/wisconsin/> (last visited Nov. 18, 2025).

⁸ *Made in Wis.: The World’s Most Powerful AI Datacenter*, MICROSOFT (Sept. 18, 2025), <https://blogs.microsoft.com/on-the-issues/2025/09/18/made-in-wisconsin-the-worlds-most-powerful-ai-datacenter/>.

scheduled to be completed in 2028.⁹ This success is made possible through processes at the PSCW and MISO, which enable the WEC Companies to capably respond to the challenges of large load interconnection.

The WEC Companies are also concerned that the ANOPR’s proposal could disrupt pending PSCW proceedings related to large loads. For example, Wisconsin Electric has filed, for PSCW approval, the new Very Large Customer (“VLC”) and Bespoke Resources Tariffs—which together address large loads in Wisconsin Electric’s service territory. These filings are expected to be approved in the first quarter of 2026.¹⁰ The VLC and Bespoke Resources Tariffs, in tandem, meet four key policy objectives:

1. Responding to the needs of large load customers who prioritize speed to market, reliability, and cost, using Wisconsin Electric’s accelerated generation planning approach.
2. Protecting Wisconsin Electric’s other customers from cost shifting by obligating large load customers to pay their fair share of Bespoke Resource¹¹ costs dedicated to serving large load customers. The tariffs achieve this by requiring large load customers to reimburse costs incurred when large load customers terminate their service agreement early or reduce their anticipated

⁹ *Port Wash. (Lighthouse) Data Ctr. Campus*, VANTAGE DATA CENTERS, <https://vantage-dc.com/data-center-locations/north-america/port-washington-wisconsin> (last visited Nov. 18, 2025).

¹⁰ *Application of Wisc. Elec. Power Co. for Approval of Its Very Large Customer and Bespoke Res. Tariff*, Case No. 6630-TE-113 (filed Pub. Serv. Comm’n of Wisc. Mar. 31, 2025) (Bespoke Resources Application).

¹¹ The Bespoke Resources Application defines Bespoke Resources as a “generating or storage resource, or portion of such a resource, dedicated to a participating customer which is owned, operated, and maintained by Wisconsin Electric, and in which the participating customer is not an equity partner.” Bespoke Resource Application at 1 n.2.

load—thereby insulating Wisconsin Electric’s other customers from increased incremental costs required to ensure timely service to large load customers.¹²

3. Protecting Wisconsin Electric’s financial health, which benefits both the utility and its current customers by ensuring Wisconsin Electric is adequately compensated without shifting costs to existing customers.
4. Facilitating substantial investment in Wisconsin to pave the way for economic development and job growth.

These innovative and transparent proposals before the PSCW will establish a process that prioritizes the efficient and expeditious interconnection of large load customers while protecting the utility’s existing customer base.

The WEC Companies also support the existing transmission interconnection planning processes in MISO, where its large load retail customers collaborate with the appropriate Transmission Owner (“TO”) and Load Serving Entity (“LSE”) to develop a load interconnection agreement.¹³ The TO conducts its own studies to determine whether the load can reliably connect to the transmission system, and MISO reviews the analysis with the customer, TO, and LSE to determine whether transmission upgrades are needed.¹⁴ American Transmission Company LLC (“ATC”), the TO for much of Wisconsin, has developed Transmission System Planning Criteria as well as a Load Interconnection Guide that provide transparency and enable large load customers to efficiently navigate the interconnection process.¹⁵ MISO and its stakeholders are developing

¹² *Id.* at 3.

¹³ *See MISO Load Interconnection Whitepaper*, MISO (July 2023), <https://cdn.misoenergy.org/MISO%20Load%20Interconnection%20Whitepaper629693.pdf>.

¹⁴ *Id.*

¹⁵ *Transmission System Planning Criteria*, ATC (Aug. 28, 2025), <https://www.atc10yearplan.com/wp-content/uploads/2025/09/PLG-CR-0001-4.pdf> (ATC Transmission Planning Criteria); *Load Interconnection Guide*,

Business Practice Manual language to coordinate the modeling of large loads within both the transmission planning process and the generation interconnection process to ensure efficient transmission expansion.¹⁶ MISO also has an Expedited Project Review (“EPR”) process for the accelerated development of transmission system enhancements outside of the typical MISO Transmission Expansion Plan process, ensuring that large loads can be quickly accommodated without impacting reliability.¹⁷

An instructive example is MISO’s recent establishment of an Expedited Resource Addition Study (“ERAS”) process, which is a targeted process designed to issue a Generation Interconnection Agreement in just three months. This is substantially less time than the normal interconnection queue, which has been beleaguered with multi-year delays. ERAS enables reliability-critical generation resources to come online quickly and to ensure the resource adequacy needs of new large loads are fulfilled. As reported in a recent MISO stakeholder forum, MISO intends to leverage the success of the ERAS and EPR processes to further enhance its ability to address the needs of large loads.¹⁸

The existing processes in Wisconsin and MISO have established a strong foundation to efficiently, fairly, and expeditiously process large load interconnection requests in Wisconsin, while ensuring that existing customers are not harmed. The stated purpose of the ANOPR is to facilitate speedy large load interconnections to the grid. However, a new, federal process—one

ATC (Aug. 22, 2025), https://www.atcllc.com/wp-content/uploads/Load-Interconnection-Guide_Rev-15_Final_082225.pdf.

¹⁶ See *MISO Presentation to the Planning Advisory Comm.*, (Aug. 27, 2025), [https://cdn.misoenergy.org/20250827%20PAC%20Item%2005a%20Sharing%20%20Coordinating%20MTEP%20%20DPP%20to%20Accommodate%20Large%20Loads%20\(PAC-2024-7\)714918.pdf](https://cdn.misoenergy.org/20250827%20PAC%20Item%2005a%20Sharing%20%20Coordinating%20MTEP%20%20DPP%20to%20Accommodate%20Large%20Loads%20(PAC-2024-7)714918.pdf)

¹⁷ The EPR process is described in Section 4.1.4 of MISO Business Practice Manual 20.

¹⁸ See *MISO Liaison Rep. to the Planning Advisory Comm.*, slide 10, (Nov. 19, 2025), <https://cdn.misoenergy.org/20251119%20PAC%20Item%2003%20Liaison%20Report727888.pdf>

that is potentially based on the lengthy generator interconnection process—could instead create a cumbersome regulatory process that would have the opposite effect. Replacing the current process could dramatically slow down the momentum that the WEC Companies and others have built in their region to accelerate data center development by superseding the process that the WEC Companies are implementing at the state level. Moreover, the WEC Companies are concerned that the process established by any rulemaking will not adequately insulate other customers, resulting in cross-subsidies from Wisconsin Electric’s base customers to large load customers—an issue adequately addressed by Wisconsin Electric’s proposed VLC and Bespoke Resources Tariffs.

To the extent the Commission proceeds with a proposed rulemaking, it should exempt states or regions in which there is no evidence to indicate that the state or region lacks effective processes to bring large loads to market expeditiously. While the WEC Companies support the Commission’s interest in expediting the rapid deployment of such infrastructure, any final rule approved in this proceeding should focus on those regions lacking either proposed or effective processes for managing large load interconnections. The procedures that have already been developed to enable efficient interconnection of large loads in Wisconsin should not be disregarded in favor of a new process that will likely take significant time to implement.

III. The Rulemaking Must Respect States’ Broad Jurisdiction over Retail Ratemaking

The WEC Companies commend the Secretary for recognizing the states’ jurisdiction over generation facilities or local distribution facilities and for proposing an approach to limit affecting that jurisdiction.¹⁹ The WEC Companies support the policy goals of the ANOPR but are concerned

¹⁹ ANOPR at P 18.

that certain of the principles for reform outlined in the ANOPR may infringe upon statutorily protected state regulatory authority under the FPA.²⁰

The ANOPR suggests that the states’ jurisdiction extends only to generation facilities, local distribution service, and retail electricity sales.²¹ State jurisdiction over an array of services that fall under traditional, bundled electric retail rates is broader and more complex than the ANOPR describes. Under FPA section 201(b)(1), the Commission has exclusive jurisdiction over the transmission of electricity in interstate commerce and wholesale sales of energy in interstate commerce.²² The FPA places beyond Commission jurisdiction the regulation of “any other sale” and makes clear that “[f]ederal regulation” is “to extend only to those matters which are not subject to regulation by the States,” including retail sales and interconnection of retail customers to the transmission system.²³ In *EPSA*, the Supreme Court explicitly states that the Commission “may not regulate . . . retail sales of electricity,” and clarifies that a federal regulation specifying the terms of a retail sale would exceed the Commission’s authority under the FPA.²⁴ The Commission recently affirmed this jurisdictional divide when rejecting a proposed tariff filing that the Commission determined would have placed conditions on terms of retail service.²⁵ Although the Commission has stated that it has jurisdiction over interconnection service as a component of transmission service,²⁶ there is no language in the FPA or legal precedent to directly support the

²⁰ 16 U.S.C. § 824(a).

²¹ ANOPR at PP 13, 15.

²² 16 U.S.C. § 824(b)(1).

²³ *PJM Interconnection, L.L.C.*, 190 FERC ¶ 61,115 at P 72 (2025); *FERC v. Elec. Power Supply Ass’n*, 577 U.S. 260, 265 (2016) (*EPSA*).

²⁴ *EPSA*, 577 U.S. at 265.

²⁵ *Tri-State Gen. & Transmission Ass’n, Inc.*, 193 FERC ¶ 61,070 at PP 48, 49 (2025) (*Tri-State*).

²⁶ *Standardization of Generator Interconnection Agreements and Procedures*, Order No. 2003, FERC Stats. & Regs. ¶ 31,146 at P 20 (2003) (emphasis added), Order No. 2003-A, FERC Stats. & Regs. ¶ 31,160 (Order No. 2003-

claim that said jurisdiction includes the interconnection of retail customers served by the WEC Companies. It is unclear how any final rule that mandates terms and conditions of service for the interconnection of load would not result in the Commission regulating terms of retail sales, especially where the load will be withdrawing from the transmission system pursuant to a bundled retail rate.

A retail sale is a sale made directly to the customer that consumes the energy product. The ANOPR contemplates a process that would apply to co-located generation facilities and load (i.e., loads seeking to share a point of interconnection with new or existing facilities).²⁷ A generation facility that is co-located with a large load and which then sells its energy product to that load is, by definition, making a retail sale. This is true regardless of whether the co-located load is interconnected at the transmission level or at distribution voltage. Commission regulation of this retail sale would extend far beyond regulating interconnections as a “component” or “element” of transmission service and would clearly be *ultra vires*.

Infringement on state jurisdiction over retail sales would especially affect those states that have not adopted retail choice and therefore have not consented to customers directly participating in a competitive retail market. Unlike the utilities in States that have adopted retail choice, franchised utilities generally have the exclusive right and legal obligation to serve load within their service territories. The WEC Companies are concerned that the ANOPR’s proposal to interconnect large loads with co-located generation facilities, paired with its suggestion that capacity and load will effectively net,²⁸ could create a process for the co-located entities to bypass

A), *order on reh’g*, Order No. 2003-B, FERC Stats. & Regs. ¶ 31,171 (2004), *order on reh’g*, Order No. 2003-C, FERC Stats. & Regs. ¶ 31,190 (2005), *aff’d sub nom. NARUC v. FERC*, 475 F.3d 1277 (D.C. Cir 2007).

²⁷ ANOPR at P 12.

²⁸ *Id.* P 22.

the Wisconsin regulatory process to allow an unauthorized retail sale from a third-party provider, in violation of States' retail franchise laws.

Another unintended consequence of a mandated federal interconnection rule established in the NOPR is that it could allow a customer to generate its own power offsite and wheel the power through the transmission system to serve itself. The South Dakota Public Utilities Commission explains how this approach could lead to unintended consequences ranging from exposing customers to higher pricing, to reliability and resource adequacy issues.²⁹ The ANOPR's acknowledgement that large loads seeking to interconnect to the transmission system do so to "obtain transmission service and the appurtenant benefits of such," including "open and non-discriminatory access to capacity, energy, and ancillary services," does not alter the limits of the Commission's jurisdiction.³⁰ Rather, it is firmly beyond the Commission's jurisdiction to regulate customers' access to retail supply. Particularly in co-located arrangements, the Commission cannot create a process that supersedes states' well-established jurisdiction over retail sales and state retail franchise laws.

The WEC Companies concur with the Edison Electric Institute's ("EEI") comments in this proceeding cautioning that the Commission's jurisdiction may not extend to the interconnection of large loads. WEC Companies share EEI's concerns over fundamentally changing the legal framework that has existed since enactment of the FPA. Through the ANOPR, the Commission is proposing to regulate the interconnection of load to the grid for the first time, notwithstanding the fact that states have historically regulated the interconnection of retail customers to the transmission system. Given that the Commission has not yet asserted jurisdiction over load

²⁹ South Dakota Public Utilities Commission ANOPR Comments at 4-5.

³⁰ ANOPR at P 16 n.36.

interconnections despite FPA section 201 being effective for almost a century, courts may be hesitant to conclude that Congress intended for the Commission to have the authority to regulate something of such “economic and political significance.”³¹ Interpreting the FPA to suddenly grant the Commission with exclusive jurisdiction over load interconnections, when the states have long held that authority, could conflict with the major questions doctrine.

Additionally, to mandate that all Transmission Providers revise their tariffs to create a large load interconnection process, the Commission likely will need to demonstrate widespread undue discrimination or preferential treatment, or that the processes under existing tariffs are unjust and unreasonable, pursuant to FPA section 206.³² As a preliminary matter, the general statements in the ANOPR that demand is growing and large loads need to be expeditiously interconnected to the grid do not meet that burden. Moreover, as discussed above, Wisconsin’s has been successful in expeditiously bringing online, and the VLC and Bespoke Resources Tariffs proposed by Wisconsin Electric will enhance that process. Given the success of large load interconnection in Wisconsin, there would be no basis for the Commission to find Wisconsin Electric’s tariff or its resulting rates unduly discriminatory, preferential, or unjust and unreasonable.

If the Commission proceeds with a rulemaking, it should do so without affecting states’ exclusive authority over retail sales. At minimum, any rulemaking should ensure that franchised service territories are protected and that any processes mandated by a rule does not permit generators to serve co-located load in violation of retail franchise laws.

³¹ *West Virginia v. EPA*, 142 S.Ct. 2587, 2608 (2022).

³² 16 U.S.C. § 824e (2018).

IV. Specific Comments on the ANOPR's Proposal

As discussed above, the WEC Companies believe that a nationwide federal interconnection process that is designed to accelerate large load interconnections could frustrate the Secretary's goals by disrupting well-functioning processes in certain regions and potentially delaying efforts to connect large customer load to the grid. Any proposed rules should at least defer to states that have their own regulatory regime for interconnecting large load customers. However, to the extent the Commission proceeds with a nationwide rule, the WEC Companies offer these suggestions to address potential cost-shifting, ensure that co-located generation and load is modeled correctly, limit the scope of the rules to large load customers, and recognize regional variation.

A. The Commission Should Ensure That Rules Regarding Co-Located Arrangements Are Dynamic and Prevent Cost Shifting

The ANOPR suggests establishing a process for large loads and generation within a co-located arrangement.³³ While the ANOPR proposes that the generation in such an arrangement could be allocated to the net transmission that it actually uses,³⁴ the ANOPR could be read to overlook the extent to which co-located facilities rely on the transmission system. The WEC Companies concur with EEI's comments advocating that the "gross" amount of load should be the standard for studying large load interconnections, that appropriate requirements should be placed on large load customers to ensure that costs are not shifted to other customers, and that large load customers should pay for their fair share of transmission costs.

³³ The ANOPR refers to this as a "hybrid" arrangement. However, this is a confusing description, as many regional transmission organizations/independent system operators ("RTOs/ISOs") use the term "hybrid" to refer to multiple generation facilities or energy storage systems that are co-located with each other but dispatched as one integrated unit.

³⁴ ANOPR at P 28.

For instance, the ANOPR suggests that co-located arrangements could be studied based on the net of load and generation for purposes of transmission service and facilities,³⁵ but suggests that co-located arrangements should be responsible for ancillary services based on peak demand (without consideration of any co-located generation).³⁶ The Commission should make the “gross” amount of load the default approach for studying large load interconnections consistent with existing Commission precedent.³⁷ This will ensure that co-located arrangements are appropriately studied based on their actual use of the transmission system, even if the load or generation has its withdrawal or injection rights based on the net capacity behind the meter.

However, even if the “gross” load of a co-located facility is used during the interconnection process, there is the potential for cost shifting. For instance, the load could seek during the interconnection process to withdraw the full amount of the load, resulting in significant network upgrades. In this situation it would be imperative that the network transmission service charges also be based on the non-netted “gross” load to avoid cost shifts to other transmission customers.

If the net withdrawal or injection of co-located facilities are permitted to influence transmission cost allocation, the Commission should ensure that there are adequate restrictions on the ability of the load or generation facility to withdraw or inject beyond their respective entitlements. The co-located facility must ensure compliance with all applicable reliability requirements. Moreover, the facility must include protective relays and other systems necessary to ensure that the facility cannot withdraw energy from the grid or inject energy onto the grid when the generation or load component of the facility trips offline. Failure to require such protective

³⁵ *Id.* P 22.

³⁶ *Id.* P 29.

³⁷ *Midwest Indep. Sys. Operator, Inc.*, 106 FERC ¶ 61,073 at P 26 (2004) (stating that treating the entire gross load behind a point of interconnection as Network Load was consistent with Order No. 888).

measures would unreasonably expose other customers in the region to the risk of dramatic spikes in supply or demand on the transmission system, thereby jeopardizing system reliability.

That being said, it is unclear whether a Commission-approved tariff could limit a load's ability to withdraw from the grid. As mentioned above, the Commission recently rejected a proposed tariff based on its determination that the tariff sought to place terms and conditions on retail purchases, namely by setting a minimum retail purchase agreement.³⁸ Likewise, a Commission-approved tariff establishing a maximum amount of retail energy that an interconnecting load could purchase or withdraw from the system could be seen as exceeding the Commission's jurisdiction. However, barring such safeguards, a co-located facility could pull from the grid or inject onto the grid without regard for whether the surrounding network has been constructed to support those energy withdrawals or injections, thereby shifting costs onto other customers. Any proposed rules must be tailored to ensure that transmission costs are fairly allocated and do not result in cross-subsidies.

B. The Size Threshold for Load Interconnections Should Be Significantly Higher, and the Commission Should Consider Permitting States, Distribution Companies, and/or RTOs/ISOs to Establish a Minimum Threshold that is Appropriate for Their System

The ANOPR proposes to apply the rules to new loads that are greater than 20 MW, based on the size threshold in the generator interconnection process, and asks for input on whether any such threshold is necessary at all.³⁹ As an initial matter, a size threshold would be necessary; otherwise, the proposed rules would apply to any load seeking to interconnect to the transmission system, no matter the size, and would usurp state regulatory authority jurisdiction over such

³⁸ See *Tri-State*, 193 FERC ¶ 61,070 at PP 48, 49.

³⁹ ANOPR at P 19.

interconnections and lead to significant load interconnection queue backlogs which would defeat the objective of the Secretary's letter and the ANOPR.

The purpose of the ANOPR is to facilitate the interconnection of high-impact "large loads." A new load of 20 MW is well below what should be considered a "large load," much less a high-impact "large load." The currently proposed threshold of 20 MW would still capture many typical commercial and industrial loads and could create a substantial backlog of routine load interconnections that were not intended to be addressed by the ANOPR. To adequately tailor the scope of the final rule to high-impact loads, the minimum threshold should be in the magnitude of hundreds of MWs, not tens. For example, ATC's Transmission Planning Criteria have established a minimum size of 200 MW for their large load interconnection requirements to apply,⁴⁰ which would be a much more appropriate threshold for capturing the high-impact large loads that the Secretary's ANOPR is intended to address.

While any minimum threshold should be in the order of hundreds of MWs, what may be considered a high-impact load likely will depend on the location of the load on the transmission system. Accordingly, the WEC Companies' support EEI's suggestion that the Commission should consider allowing States, distribution companies, and/or RTOs/ISOs to establish a minimum threshold that is appropriate for their own system.

C. The Commission Should Consider Permitting Regional Variation

As discussed above, the Commission should honor established processes that are working well and should not apply federal rules to regions where there are existing or proposed processes or tariffs, such as in Wisconsin. At a minimum, the Commission should apply the "independent entity variation" standard to load interconnection rules, as it does the generator interconnection

⁴⁰ See *supra* note 15.

rules. Under the “independent entity variation” standard, an independent Transmission Provider could propose customized procedures that fit the needs of its particular region instead of a nationwide *pro forma* interconnection agreement or process.⁴¹ This would permit RTOs/ISOs more flexibility in the implementation of any nationwide rules, which could reduce the disruption that the rules would have on current well-functioning processes and better achieve the Secretary’s goal of facilitating the efficient, fair, and expedition interconnection of large loads.

V. Conclusion

The WEC Companies respectfully request that the Commission accept and consider these comments.

Respectfully submitted,

/s/ Russell Kooistra

Russell Kooistra

Emily B. Beard

TROUTMAN PEPPER LOCKE LLP

401 9th Street, NW, Suite 1000

Washington, DC 20004

(202) 274-2872

russell.kooistra@troutman.com

emily.beard@troutman.com

Counsel for the WEC Companies

Conor B. Ward
Senior Corporate Counsel
WEC Business Services, LLC
231 W. Michigan Street
Milwaukee, WI 53203
(414) 221-2539
conor.ward@wecenergygroup.com

Dated: November 21, 2025

⁴¹ Order No. 2003-A at PP 48–51 (subsequent history omitted).